

HSAM 3008.401-71(d) Sole-Sources Justification (SSJ) pursuant to Revolutionary Federal Acquisition Regulation Overhaul (RFO) 8.401(b)
For orders or BPAs exceeding the Simplified Acquisition Threshold

SSJ No.: FY26-0082

This acquisition is conducted in accordance with the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, 40 U.S.C. 501, Services for Executive Agencies, and in accordance with Federal Acquisition Regulation (FAR) 8.401, FAR Class Deviation 25-20 for FAR Part 8¹, and GSA Class Deviation RFO-2025-FSS-GSAR-538.²

1. Agency and Contracting Activity Identification of the agency, contracting activity, and specific identification of the document as a “Sole Source Justification.”

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO) proposes to award a Sole Source Justification in accordance with RFO FAR 8.401(b).

2. Nature and/or description of the action being approved. Describe the action being approved and include the name and address of the proposed contractor(s).

DHS/OPO intends to sole source pursuant to RFO FAR 8.401(b) and General Service Acquisition Regulation (GSAR) 538.7104-3 Sole Source Justifications for the procurement of ongoing Advisory and Assistance Services (A&AS) to ensure uninterrupted programmatic support for the OHS mission and portfolios. The vendor is as follows:

LMI Consulting LLC (LMI)
7940 Jones Branch Drive
Tysons, VA 22102

The contract type is Labor-Hour.

The type of funding is FY2026 Operations and Support (O&S).

3. Description of Supplies/Services. Describe the supplies or services to be acquired. Provide the estimated total value (including options, if any).

The requirement is for the continued provision of Advisory and Assistance Services (A&AS), in support of both critical day-to-day business functions and specialized and technical programmatic lines of effort for the Office of Health Security (OHS). The estimated value of the contract, covering a 3-month period of performance and two 3-month option

¹ “[1] FAR Class Deviation 25-20 for FAR Part 8 was issued as part of the Revolutionary FAR Overhaul (RFO), which was implemented in response to Executive Order 14275, *Restoring Common Sense to Federal Procurement*, signed April 15, 2025. Any subsequent citations to FAR Part 8 in this document will be cited as “RFO FAR” for brevity and are referring specifically to FAR Class Deviation 25-20 for FAR Part 8.”

² GSA Class Deviation RFO-2025-FSS-GSAR-538: General Services Administration Acquisition Regulation (GSA) Class Deviation, Federal Supply Schedule (FSS) Program Ordering Procedures

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periods, is [REDACTED]

The estimated total value (including options) is as follows:

Period		Unit Price	Total
Base Period	04/21/2026-07/20/2026	[REDACTED]	[REDACTED]
Option Period 1	07/21/2026-10/20/2026		
Option Period 2	10/21/2026-01/20-2027		
		Total	[REDACTED]

4. Authority and supporting rationale.

RFO FAR Subpart 8.401(b) and GSAR Subpart 538.7104-3(b)(ii), only one source is capable of providing the products, services, or solution required at the level of quality required because the products, services, or solutions are unique or highly specialized.

This requirement is the result of the newly implemented Executive Orders and Administrative policies which now includes OHS having a much more substantial role in current immigration enforcement operations – including 24/7/365 operations at Naval Station Guantanamo Bay and across the Nation. In order to continue effectively and efficiently to deliver on this mission, the DHS Office of Health Security (OHS) requires flexible and scalable contractual Advisory and Assistance Services (A&AS) in support of both critical day-to-day business functions and specialized and technical programmatic lines of effort. The purpose of this effort is to establish a short-term contract to ensure continuity of existing services as OHS completes its procurement effort for a consolidated and comprehensive A&AS contract in 2026. While OHS has been working diligently on this comprehensive A&AS re-compete effort, several events have contributed to the need for a short-term contract:

- Pending termination of the CWMD Office and expiration of the existing task order³ OHS currently receives these services through April 20, 2026.
- OHS planned to place a Blanket Purchase Agreement (BPA) call against U.S. Customs and Border Protection's BPA for Enterprise Business Management Support Services (EBMSS) 2.0 in early 2026. However, the availability of this

³ This requirement was originally procured and executed for the DHS' Office of Countering Weapons of Mass Destruction (CWMD) Medical Operations Directorate, which was subsequently reorganized into OHS.

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BPA was delayed due to several post-award protests that resulted in stay of contract performance. CBP anticipates that the BPA may be available for awards starting in FY26 Q3.

- Prolonged lapses in appropriations resulting in three shutdowns and furlough of personnel in FY26 Q1 and Q2.

These factors have delayed acquisition planning and prevented the execution of a new long-term contract before the current contract expires on April 20, 2026. Therefore, awarding a sole source short term contract to LMI is necessary to avoid unacceptable delays in mission-critical support while a competitive, subsequent procurement is developed. LMI is uniquely positioned to provide uninterrupted services due to their incumbent status and familiarity with the OHS mission and operational requirements. Any delay in awarding this contract would jeopardize the continuity of operations and adversely impact the OHS mission.

5. A description of the market research conducted among schedule holders and the results.

Market research was conducted and revealed that this procurement and associated requirements are likely to be met by only a small number of highly capable and resourced vendors. However, the urgency and need for immediate continuity of existing services supports the limitation of competition and procurement of a sole-source short term contract with the incumbent vendor LMI. This gap filling contract will be established in parallel to the completion of the procurement process for OHS's comprehensive A&AS re-compete contract, for which a selection of large business vendors are likely to have the capability and interest in providing services related to the requirements. OHS used the results of the 2023 and 2025 RFIs, analysis of various strategic sourcing vehicles and GSA schedules, investigations in companies with federal healthcare contracts and practice areas, and first-hand knowledge of the dynamics of this operating environment to guide the acquisition strategy for this requirement. Additionally, due to challenges associated with a broad range of experience, from medical operations to budgeting and program management services, the evaluation plan for this upcoming procurement has been modified accordingly to emphasize the importance of technical capability in addition to management approach and past performance.

It is the Government's determination that the incumbent, LMI, is appropriately positioned to deliver on this urgent requirement via a short-term contract.

This gap-filling contract is not an effort to limit competition; rather, it is merely a limited duration contract to maintain mission critical services until the follow-on contract that can be competed under the CBP EBMSS 2.0 BPA.

Please refer to the Market Research Report for further information.

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- 6. Any other facts supporting the sole source justification. Additional facts may be stated in this section. If there are no additional facts, you must state that here.**

FY 2026 O&S funding is available for this action. The prices for the contemplated short-term effort are determined to be fair and reasonable, consistent with the terms of the GSA contract. The contractor remains in good standing and has provided satisfactory performance in accordance with contract requirements, without incurring excessive or unexpected costs. Based on these factors, awarding the sole source contract to LMI is in the best interest of the Government

- 7. A statement of action, if any, the agency may take to remove or overcome any barriers that led to restricted consideration (i.e., limited sources) before any subsequent acquisition for the supplies or services is made. Include a statement of actions taken or that will be taken to increase competition for future acquisitions of the same item/service (e.g., the government intends to revise overly restrictive technical specifications, acquire data rights, or pursue some other means to increase future competition).**

The gap filling contract is a temporary measure, and the agency is committed to removing barriers to competition prior to any subsequent acquisition for these services. It is anticipated that the subsequent procurement to this sole source action will be competed under the U.S. Customs and Border Protection's BPA for Enterprise Business Management Support Services (EBMSS) 2.0, currently anticipated for FY26 Q3.

- 8. DHS intends to post this requirement on System for Award Management (SAM.gov) pursuant to RFO FAR 8.401 (b) and GSAM Subpart 538.7104-3(b)(3)(A).**
- 9. Technical/Requirements Personnel Certification.** I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

Technical Representative

Date

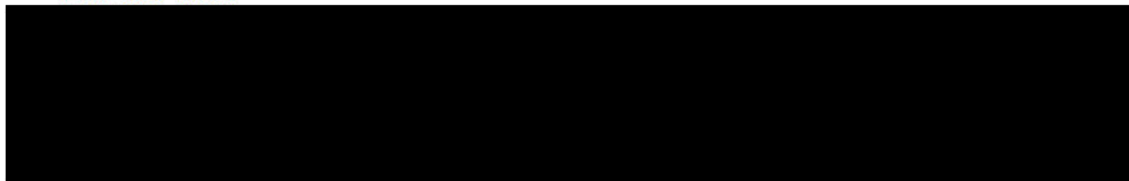
- 10. Contracting Officer's Certification.** I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

Contracting Officer

Date

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APPROVAL:



Procuring Activity Advocate for Competition
or Designee

Date